

25STCV00555 25STCV00555

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 25STCV00555 Hearing Date: August 27, 2026 Dept: 510

No. 2 – Miguel Carnero, et al. v.

Teresa Escobar

Plaintiffs

Miguel Carnero and Mariela Carnero's Request for Default Judgment

Plaintiffs Miguel Carnero

and Mariela Carnero request court judgment by default against Defendant Teresa Escobar. The application suffers several defects.

Plaintiffs did not file

mandatory Judicial Council form CIV-100. Under California Rules of Court, rule 3.1800(a), "[a] party seeking default judgment on declarations must use mandatory Request for Entry of Default (Application to Enter Default) (form CIV-100)."

In addition, Plaintiffs

request prejudgment interest at the annual rate of 10%, but did not include interest computations to support their request. Plaintiffs must provide "[i]nterest computations as necessary." (Cal. Rules of Court, rule 3.1800(a)(3).) Such computations require identifying the principal amount, beginning date, end date, and interest rate.

Plaintiffs did not

dismiss Does 1-10. A request for default judgment must include "[a] dismissal of all parties against whom judgment is not sought or an application for separate judgment against specified parties under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment." (Cal. Rules of Court, rule 3.1800(a)(7).) Plaintiffs do not seek default judgment against

the Doe defendants. They therefore must be dismissed.

In
any renewed request for default judgment, Plaintiffs should also submit a
proposed judgment on form JUD-100.

Disposition

Plaintiffs Miguel Carnero
and Mariela Carnero's request for default judgment is denied without
prejudice.